IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI, COURT-III

COMPANY APPLICATION NO. (CAA) - 75(ND)/2023

(Under Section 230-232 and other applicable provisions of the Companies Act, 2013 r/w the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016)

IN THE MATTER OF SCHEME OF AMALGAMATION

BETWEEN

M/s. AAREY FRUITS PRIVATE LIMITED

..... Applicant Company No. 1/ Transferor Company No. 1

AND

M/s. BLUE EYE HOMES PRIVATE LIMITED

..... Applicant Company No. 2/ Transferor Company No. 2

AND

M/s. GOVERDHAN PROMOTERS PRIVATE LIMITED

..... Applicant Company No. 3/ Transferor Company No. 3

AND

M/s. SANTUSHTI BUILDCON PRIVATE LIMITED

..... Applicant Company No. 4/ Transferor Company No. 4

AND

M/s. SUMO BUILDTECH PRIVATE LIMITED

..... Applicant Company No. 5/Transferor Company No. 5

WITH

M/s. SHIVA BUILDWELL PRIVATE LIMITED

..... Applicant Company No. 6/Transferee Company

Order Pronounced On: 24.11.2023

CORAM:

SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Ashish Middha, Adv.

For the Respondent :

ORDER

PER: ATUL CHATURVEDI, MEMBER (TECHNICAL)

1. This is a 1st Motion Petition jointly filed by the Applicant Companies seeking approval of this Tribunal about the Scheme of Amalgamation under Sections 230 and 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016 in respect of above Applicant Companies. It is represented that the registered office address of all the Applicant Companies is situated in New Delhi and therefore the subject matter of the said petition falls within the jurisdiction of this Tribunal. Ld. Counsel has given the brief description of the Applicant Companies, which are as follows:

   a) Transferor Company No. 1 namely M/s. Aarey Fruits Private Limited bearing CIN: U01122DL2012PTC394497 was incorporated on 11.09.2012 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, Jaipur. Its registered office was shifted from the State of Rajasthan to the Union Territory of Delhi on 02.03.2022 and Fresh Certificate of Incorporation was issued. The registered office address of Applicant Company No. 1 is situated at 2481/82/9, Second Floor, Beadon Pura, Karol Bagh, Delhi-110005. The Authorized Share Capital of the Company is Rs. 30,00,000/- and the issued, subscribed and paid-up share capital of the Company is Rs. 30,00,000/-.

   b) Transferor Company No. 2 namely M/s. Blue Eye Homes Private Limited bearing CIN: U45201DL2012PTC394496 was incorporated on 19.05.2012 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, Jaipur. Its

registered office was shifted from the State of Rajasthan to the Union Territory of Delhi on 02.03.2022 and Fresh Certificate of Incorporation was issued. The registered office of Applicant Company No. 2 is situated at 2481/82/9, Second Floor, Beadon Pura, Karol Bagh, Delhi- 110005. The Authorized Share Capital of the Company is Rs. 20,00,000/- and issued, subscribed and paid- up share capital of the Company is Rs. 20,00,000/-.

c) Transferor Company No. 3 namely M/s. Goverdhan Promoters Private Limited bearing CIN: U45202DL2005PTC392722 was incorporated on 25.11.2005 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, Uttar Pradesh. Its registered office was shifted from the State of Uttar Pradesh to the Union Territory of Delhi on 21.01.2022 and Fresh Certificate of Incorporation was issued. The registered office address of Applicant Company No. 1 is situated at 2481/82/9, Second Floor, Beadon Pura, Karol Bagh, Delhi-110005. The Authorized Share Capital of the Company is Rs. 15,00,000/- and the issued, subscribed and paid-up share capital of the Company is Rs. 12,40,000/-.

d) Transferor Company No. 4 namely M/s. Santushti Buildcon Private Limited bearing CIN: U70101DL2005PTC140948 was incorporated on 20.09.2005 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, Delhi & Haryana. The registered office address of Applicant Company No. 1 is situated at 2nd Floor, S-2 Pocket Okhla, Phase-2, New Delhi-110020. The Authorized Share Capital of the Company is Rs. 50,00,000/- and the issued, subscribed and paid-up share capital of the Company is Rs. 19,70,000/-.

e) Transferor Company No. 5 namely M/s. Sumo Buildtech Private Limited bearing CIN: U70109DL2013PTC254058 was incorporated on 18.06.2013 under the provisions of the Companies Act, 2013 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, Delhi & Haryana. The registered office address of Applicant Company No. 1 is situated at House No. 76, 2nd Floor, Sharda Niketan, Pitampura, New Delhi - 110034. The Authorized Share Capital of the Company is Rs. 5,00,000/- and the issued, subscribed and paid-up share capital of the Company is Rs. 1,00,000/-.

f) Transferee Company namely M/s. Shiva Buildwell Private Limited, bearing CIN: U25201DL1989PTC391642 was incorporated on 08.08.1989 under the provisions of the Companies Act, 1956 as a Company limited by Shares (Non-govt. company) with the Registrar of Companies, Uttar Pradesh. Its registered office was shifted from the State of Uttar Pradesh to the Union Territory of Delhi on 23.12.2021 and Fresh Certificate of Incorporation was issued was issued. The registered office address of Transferee Company is situated at 2481/82/9, Second Floor, Beadon Pura, Karol Bagh, Delhi-110005. The Authorized Share Capital of the Company is Rs. 25,00,000/- and the issued, subscribed and paid-up share capital of the Company is Rs. 4,95,300/-.

2. Affidavits in support of the above petition have been sworn by Mr. Akshat Agarwal, Director of Transferor Company No. 1, 2, 4 & 5 and by Mr. Sanjay Kumar Agarwal, Director of Transferor Company No.3 and Transferee Company who have been authorized vide board resolutions of all the Applicant Companies. These Affidavits are filed along with the petition.

3. The Board of Directors of the Transferor Companies No. 1, 2, 3, 4 & 5 as well as the Board of Directors of the Transferee Company in their

separate meetings held on 07.06.2023 approved and adopted the Scheme of Amalgamation wherein it is proposed to transfer the Undertaking of the Transferor Companies No. 1, 2, 3, 4 & 5 with all assets and liabilities into the Transferee Company as a going concern basis in accordance with the terms of the Scheme of Amalgamation.

4. The Applicant Companies have filed its Memorandum and Articles of Association inter alia delineating their object clauses as well as the latest audited annual financial report for the year ended 31.03.2022 and the copy of the unaudited provisional financial statements as on 31.03.2023 as required under section 232(2)(e) of the Companies Act, 2013.

5. The Applicant Companies have filed the true copy of the proposed Scheme of Amalgamation and have outlined the benefit of the same, which are as follows:

"a) The Scheme of Amalgamation does not involve reorganization or restructure of capital nor does the same involve any compromise or reduction of capital. All companies are owned and controlled by the same family and group of persons and there are no outside interests of any third party in the companies.

b) The proposed amalgamation would enable pooling of physical, financial and human resource of these Companies for the most beneficial utilization of these factors in the combined entity.

c) The proposed Scheme would result in optimum utilization of the manpower of the concerned companies. It will open better avenues for the employees of the concerned companies. The employees will have a better choice of skill up gradation, development and carrier growth.

d) The proposed scheme of amalgamation will result in usual economies of a centralized and a large company including elimination of duplicate work, reduction in overheads, better and more productive utilization of human and other resource and enhancement of overall business efficiency. It will enable these

companies to combine their managerial and operating strength, to build a wider capital and financial base and to promote and secure overall growth of their businesses.

e) The said scheme of Amalgamation will contribute in fulfilling and furthering the objects of the Transferor and the Transferee Companies. It will strengthen, consolidate and facilitate further expansion and growth of their businesses. The resulting amalgamated company will be able to participate more vigorously and profitably in the competitive market scenario.

f) The proposed amalgamation would enhance the Shareholders value of the Transferor and Transferee Companies.

g) The said scheme of Amalgamation will have beneficial impact on all the Transferor and the Transferee Companies, their employees, their shareholders, and all concerned.

h) The main object of the amalgamation is to reduce filing of returns, to save money in filing and professional fee besides saving the reduction of prosecutions and hefty penalties under the Companies Act, 2013."

6. The Shares of the Transferor Companies and the Transferee Company have been evaluated for the purpose of determining the exchange ratio:

"a) zero point zero zero Two (0.002) or say Two (2) Equity Shares of Rs. l0/- (ten) each of Shiva Build well Private Limited shall be allotted for every one (1) or say one Thousand (1000) Equity Share of Rs. 10/- (ten) each of Aarey Fruits Private Limited (Transferor Company No. 1).

b) Zero point One (0.1) or say One (1) Equity Shares of Rs.10/- (ten) each of Shiva Buildwell Private Limited shall be allotted for every one (1) or say Ten (10) Equity Share of Rs. 10/- (ten) each of Blue Eye Homes Private Limited (Transferor Company No. 2).

c) One (1) Equity Shares of Rs. 10/- (ten) each of Shiva Buildwell Private Limited shall be allotted for every one (1) Equity Share of Rs. 10/- (ten) each of Goverdhan Promoters Private Limited (Transferor

Company No. 3).

d) Point Two (0.2) or say two (2) Equity Shares of Rs.10/- (ten) each of Shiva Buildwell Private Limited shall be allotted for every one (1) or say ten (10) Equity Share of 10/- (ten) each of Santushti Buildcon Private Limited (Transferor Company No. 4).

e) Zero Point One (0.1) or say (1) Equity Shares of Rs.10/- (ten) each of Shiva Buildwell Private Limited shall be allotted for every one (1) or say ten (10) Equity Share of Rs. 10/- (ten) each of Sumo Buildtech Private Limited (Transferor Company No. 5)."

7. The Applicant Company No. 1 has 3 (Three) equity shareholders as on 31st March, 2023. The consent letters of all the Equity Shareholders along with the affidavit is filed along with the Petition. The Applicant Company No. 1 has NIL secured creditors as on 31st March, 2023. The Applicant Company No. 1 has NIL Unsecured creditors as on 31st March, 2023.

8. The Applicant Company No. 2 has 2 (Two) equity shareholders as on 31st March, 2023. The consent letters of all the Equity Shareholders along with affidavit is filed along with the Petition. The Applicant Company No. 2 has NIL secured creditors as on 31st March, 2023. The Applicant Company No. 2 has 3 (Three) Unsecured creditors as on 31st March, 2023. The consent letters of all the Unsecured creditors along with affidavit is filed along with the Petition.

9. The Applicant Company No. 3 has 4 (Four) equity shareholders as on 31st March, 2023. The consent letters of all the Equity Shareholders along with affidavit is filed along with the Petition. The Applicant Company No. 3 has NIL secured creditors as on 31st March, 2023. The Applicant Company No. 3 has 2 (Two) Unsecured creditors as on 31st March, 2023. The consent letters of all the Unsecured creditors along with affidavit is filed along with the Petition.

10. The Applicant Company No. 4 has 3 (Three) equity shareholders as on 31st March, 2023. The consent letters of all the Equity Shareholders along with affidavit is filed along with the Petition. The Applicant

Company No. 4 has NIL secured creditors as on 31st March, 2023. The Applicant Company No. 4 has 2 (Two) Unsecured creditors as on 31st March, 2023. The consent letters of all the Unsecured creditors along with affidavit is filed along with the Petition.

11. The Applicant Company No. 5 has 2 (Two) equity shareholders as on 31st March, 2023. The consent letters of all the Equity Shareholders along with affidavit is filed along with the Petition. The Applicant Company No. 5 has NIL secured creditors as on 31st March, 2023. The Applicant Company No. 5 has 1 (One) Unsecured creditors as on 31st March, 2023. The consent letters of all the Unsecured creditors along with affidavit is filed along with the Petition.

12. The Applicant Company No. 6 has 5 (Five) equity shareholders as on 31st March, 2023. The consent letters of all the Equity Shareholders along with affidavit is filed along with the Petition. The Applicant Company No. 6 has NIL secured creditors as on 31st March, 2023. The Applicant Company No. 6 has 1 (One) Unsecured creditors as on 31st March, 2023. The consent letters of all the Unsecured creditors along with affidavit is filed along with the Petition.

13. Having heard the submissions made by Ld. Counsel and having perused the records as well as the documents placed on record, we allow the following prayers:

a) *"Dispensing with requirement for convening the meeting of the equity shareholders of the transferor and transferee companies and also to dispense with the requirement of issue and publication of notices of the same and appointment of chairman for the meetings;*

b) *Dispensing with requirement for convening the meeting of the secured creditors of the transferor company and the transferee company and also to dispense with the requirement of issue and publication of notices of the same and appointment of chairman for the meetings. In case of Transferee Company, the notices be sent to the secured creditors in view of the liquidity*

position of transferee company and the certificate of the Chartered Accountant that the transferee company shall be in a position to discharge its liability towards the secured creditors after amalgamation;

c) *Dispensing with requirement for convening the meeting of the unsecured creditors of the transferor company and transferee company in view of their consents of more than 90% and also to dispense with the requirement of issue and publication of notices of the same and appointment of chairman for the meetings; and*

d) *Issue such other orders or directions be given as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the present case."*

14. The prayer sought in the present petition bearing CA(CAA)-75/(ND)/2023 stands **allowed** on the aforesaid term and is accordingly **disposed of**.

15. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicant Companies.

16. Let copy of the order be served to all the parties.

Sd/-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)